

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002972

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: AHMAD ALI MOHYEE

vs.

DEFENDANT: DOUGLAS C. QUAN ET AL.

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendants Douglas C. and Livia T. Quan’s (“Defendants”) motion for summary judgment is DENIED. Their motion for summary adjudication is likewise DENIED.

BACKGROUND

This is a landlord-tenant dispute. According to the Third Amended Complaint (“TAC”), Defendants, a married couple, are Plaintiff Ahmad Ali Mohyee (“Plaintiff”) and his wife Marjan Mohyee’s former landlords. (TAC, ¶¶ 3-4.) Plaintiff and his wife leased property at 31 Elmview Way in Novato from Defendants beginning in June 2022. (*Id.* at ¶ 4.) Plaintiff alleges that they moved to the area to be closer to his mother and his brother-in-law, both of whom were suffering from neurodegenerative diseases and were under Plaintiff’s care. (*Id.* at ¶ 6.)

According to Plaintiff, his and his wife’s initial lease with Defendants provided that the rental term would last from June 15, 2022, to June 14, 2023. (TAC, ¶ 9.) It would then terminate unless the parties entered into a new agreement or Defendants accepted rent payments, in which case a month-to-month tenancy would be created. (*Ibid.*)

On June 10, 2023, as Plaintiff and his wife’s initial lease term was about to expire, Defendants allegedly presented them with a new lease agreement at a higher cost. (TAC, ¶ 11.) Plaintiff allegedly told Defendants that he would not agree to another twelve-month lease, but wanted a month-to-month arrangement, and wanted the rent decreased in consideration of the fact that he and his wife had made various improvements to the property at their own expense. (*Id.* at ¶ 12.) Plaintiff explained that he was unwilling to sign another twelve-month lease because he anticipated that he and Marjan might need to move his mother in with them so that they could care for her, and the Novato property could not accommodate her physical condition. (*Id.* at ¶ 16.) Defendants allegedly accepted Plaintiff’s rent payments for the two months immediately following the termination of the original lease, which Plaintiff says transformed the arrangement into a month-to-month tenancy by the terms of the original lease. (*Id.* at ¶ 13.)

However, Defendants continued to demand that Plaintiff and his wife enter into a new twelve-month lease. (*Id.* at ¶¶ 17-18.)

On June 28, 2023, Defendants allegedly served Plaintiff and Marjan with a 60-day notice of termination of tenancy. (TAC, ¶ 19.) Plaintiff informed them that this was a violation of the parties' new month-to-month tenancy arrangement. (*Id.* at ¶ 20.) Plaintiff continued to negotiate with Defendants to permit him and Marjan to stay without having to commit to an entire year of continued residency. (*Id.* at ¶ 23.) Defendants allegedly made them a new offer: They could lease the Novato property for a ten-month term at a higher-than-market-rate price, or they could be evicted as of August 27, 2023. (*Ibid.*)

According to the TAC, on August 14, 2023, Marjan alone agreed to the ten-month lease option under duress. (TAC, ¶ 24.) Plaintiff alleges that as a result, he and his wife had to stop living together. (*Ibid.*) In late August 2023, Plaintiff began leasing an apartment near his mother's house. (*Id.* at ¶¶ 25, 27.) Plaintiff says while getting approved for that apartment, he learned that the original lease he had been provided for Defendants' property was defective for want of a Notice of AB 1482 (relating to the California Tenant Protection Act of 2019). (*Id.* at ¶ 25.)

Plaintiff subsequently filed this suit against Defendants for fraudulent inducement, breach of contract, wrongful eviction, unjust enrichment, and intentional infliction of emotional distress ("IIED"). Before the Court is Defendants' motion for summary judgment, or, alternatively, summary adjudication.

LEGAL STANDARD

Any party may move for summary judgment. (Code of Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) The object of the summary judgment procedure is "to cut through the parties' pleadings" to determine whether trial is necessary to resolve the dispute. (*Aguilar, supra*, 25 Cal.4th 826, 843.)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Aguilar, supra*, 25 Cal.4th 826, 851.) When the moving party is a defendant, the initial burden entails showing "that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

A defendant moving for summary judgment or summary adjudication may meet its initial burden in either of two ways. First, the defendant can "present evidence that conclusively negatives an element of the plaintiff's cause action." (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) Second, "[a]s an alternative to the difficult task of negating an element, the defendant may present evidence to 'show[] that one or more elements of the cause of action...cannot be established' by the plaintiff." (*Ibid.* [quoting Code Civ. Proc., § 437c, subd.

(p)(2).) A defendant does this “ ‘by showing that the plaintiff does not possess, and cannot reasonably obtain’ ” evidence necessary to support an element of his claim. (*Ibid.* [quoting *Aguilar, supra*, 25 Cal.4th 826, 854].) A defendant cannot make this showing by simply asserting that the plaintiff does not have the evidence and cannot reasonably obtain it. (*Scheidig v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 75-76; *Aguilar, supra*, 25 Cal.4th 826, 854-855.) Instead, the defendant must put forth *affirmative evidence* supporting the proposition that the plaintiff does not have, and cannot reasonably obtain, necessary evidence. (*Aguilar, supra*, 25 Cal.4th 826, 854-855; *Chavez, supra*, 207 Cal.App.4th 1283, 1306.)

Once the moving party has met its initial burden, the burden shifts to the opposing party to “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826, 845.)

DISCUSSION

Plaintiff’s Evidentiary Objections

Objection No. 1: Sustained as to the word “voluntarily.” (Evid. Code, § 702 [lack of personal knowledge].)

Objection No. 2: Sustained. (Evid. Code, § 702 [lack of personal knowledge].)

Objection No. 3: Sustained to the extent this statement describes Livia Quan’s statements to Plaintiff. (Evid. Code, § 702 [lack of personal knowledge].)

Objection No. 4: Sustained. (Evid. Code, §§ 720, 800, 803 [improper legal opinion].)

Objection No. 5: Sustained to the extent this statement describes Livia Quan’s conduct. (Evid. Code, § 702 [lack of personal knowledge].)

Objection Nos. 6-8: Defendants cite to their verified amended answer to the TAC as evidence in support of this motion, and these three objections target that material. These objections are sustained. A party cannot rely on its own pleadings, even if verified, as evidence in support of or in opposition to a motion for summary judgment or summary adjudication. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 720, fn. 7; *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1290; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) § 10:51.30.)

Defendants’ Evidentiary Objections

The Court has determined that Defendants did not carry their initial burden as to any of the issues for such they seek summary adjudication. As a result, it had no occasion to reach Plaintiff’s evidence. (See *Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 353-354 [“The moving party must satisfy his or her initial burden before the opposing party must controvert anything. . . . Where the evidence submitted by a

moving defendant does not support judgment in his favor, the court must deny the motion without looking at the opposing evidence, if any, submitted by the plaintiff.”].) The Court therefore does not rule on Defendants’ objections to Plaintiff’s evidence. (See Code Civ. Proc., § 437c, subd. (q) [“the court need rule only on those objections to evidence that it deems material to its disposition of the motion”].)

The Court has not considered the additional separate statement submitted with Defendants’ reply brief. The summary judgment statute does not provide for a “reply separate statement.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 306 [abrogated in unrelated part as stated in *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 853, fn. 12].) Also, Defendants’ reply brief exceeds the applicable ten-page limit by more than seven pages. (See Cal. Rules of Court, rule 3.1113(d).) The Court disregards Pages 11-18 of the reply brief.

Issue No. 1: First Cause of Action – Fraudulent Inducement

The elements of fraud are: (1) a misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (or scienter); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979.) Defendants argue that this claim fails for want of a knowingly false representation.

This cause of action alleges that Defendants made certain knowingly false statements to Plaintiff to induce him to sign the original June 2022 lease. (TAC, ¶ 34.) As pleaded, this claim is based on at least two alleged misrepresentations. First, Defendants allegedly falsely represented to Plaintiff that they would allow him to rent the property on a month-to-month basis after the initial one-year term ended provided a specified condition occurred, and allegedly omitted that in reality, they intended to force him out if he would not agree to another long, fixed term. (*Id.* at ¶¶ 34(a)-(b).) Defendants’ moving papers attempt to address this basis for liability, although they mischaracterize the claim, writing as though they are being sued for falsely representing to Plaintiff that he could live at the property month-to-month forever. (See Memorandum, p. 5.)

The second alleged misrepresentation on which this claim is based is that Defendants concealed from Plaintiff material information regarding his rights in relation to eviction by failing to include a Notice of AB 1482 in the lease. (TAC, ¶ 34(c).) Defendants’ moving papers are completely silent as to this theory of their liability for fraudulent inducement, which means they have not met their burden as to this cause of action. (See *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 945 [where a defendant has failed to foreclose an avenue to liability, the trial court is to conclude that the defendant failed to carry its burden and deny summary judgment]; see also Code Civ. Proc., § 437c, subd. (t) [a court may only grant summary adjudication where it would dispose of an entire cause of action].) Defendants attempt to cure this omission in their reply. (See Reply, p. 8.) “Points raised for the first time in a reply brief will...not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.” (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453; see also *Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 [“The salutary [sic] rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown

for the failure to present them before.”].) The Court cannot hold Plaintiff’s burden triggered as to this issue where Defendants did not address a pleaded theory of liability in any way until their reply brief.

Defendants state that Plaintiff “cannot establish” the elements of this claim and “possesses no evidence” supporting his allegations. They do not direct the Court to any evidence supporting the proposition that Plaintiff does not have, and cannot reasonably obtain, evidence necessary to support his claim for fraudulent inducement. Mere argument that Plaintiff does not have evidence and cannot obtain it is not enough to shift the burden at summary judgment/adjudication. (*Scheiding, supra*, 69 Cal.App.4th 64, 75-76; *Aguilar, supra*, 25 Cal.4th 826, 854-855.)

Defendants have not carried their burden as to this issue. The motion for summary judgment is DENIED, and the motion for summary adjudication is DENIED as to Issue No. 1.

Issue No. 2: Second Cause of Action – Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, supra*, 51 Cal.4th 811, 821.)

The June 2022 lease provided that Defendants’ acceptance of rent after expiration of the initial one-year term would create a month-to-month tenancy. (UMF No. 3; Def.’s Ex. 3, ¶ 1A.) However, it further provided that “either party may terminate” such a month-to-month tenancy “as specified in paragraph 1B.” (UMF No. 4; Def.’s Ex. 3, ¶ 1A.) Paragraph 1B of the lease provided that Defendants could terminate “by giving written notice as provided by law.” (Def.’s Ex. 3, ¶ 1B; UMF No. 5.)

Defendants argue that there was no breach here as a matter of law. According to Defendants, Plaintiff’s theory of this cause of action “depends entirely on the proposition that acceptance of the rent after June 14, 2023 permanently obligated [Defendants] to allow Plaintiff to remain as a month-to-month tenant indefinitely[,]” and “the lease contains no such promise[,]” but instead expressly permits either party to terminate any month-to-month tenancy. (Memorandum, p. 5.)

Plaintiff has not pleaded that Defendants breached the lease exclusively by terminating the tenancy, rather than permitting him to live there indefinitely on a month-to-month basis. This cause of action is broader than that. Plaintiff alleges that Defendants breached the lease by serving him with an eviction notice in a manner that was not permitted under the terms of the lease. (TAC, ¶¶ 50-51.) The TAC expressly frames this as a breach distinct from the separate breach consisting of Defendants’ “demand[ing] that Plaintiff and Marjan Mohyee sign a new lease agreement with terms different from those of the existing agreement and falsely represent[ing] that a month-to-month tenancy was not an option.” (*Id.* at ¶¶ 48, 50.)

To merit summary adjudication of this cause of action by attacking the breach element, Defendants must foreclose any theory of breach within the scope of the TAC. (See *Hawkins, supra*, 144 Cal.App.4th 936, 945.) Given that Plaintiff has pleaded that Defendants breached the

lease by serving him with an eviction notice in a manner that was not permitted by the lease, Defendants must either establish that the circumstances under which they served Plaintiff with an eviction notice complied with the terms of the lease in every respect or present affirmative evidence that Plaintiff does not have, and cannot reasonably obtain, evidence that Defendants breached the lease in this manner.

Defendants are correct that the lease did not obligate them to allow Plaintiff to live at the property on a month-to-month basis forever. However, the lease placed constraints on Defendants' right to terminate a month-to-month tenancy. It required them to do so only "by giving written notice *as provided by law*." (Def.'s Ex. 3, ¶ 1B [emphasis added]; UMF No. 5.) Plaintiff's TAC pleads that the written eviction notice Defendants served on him was *not* compliant with the law because it violated the California Tenant Protection Act of 2019 (referred to in the TAC as "AB 1482"), and that this act of serving Plaintiff with a legally noncompliant eviction notice constituted a breach of the lease distinct from Defendants' refusal to let Plaintiff continue living at the property on a month-to-month basis. (TAC, ¶¶ 43-44; 50-51.) The result is that to carry their burden, Defendants need to establish that their eviction notice fully complied with the California Tenant Protection Act of 2019, or that Plaintiff cannot establish otherwise. Defendants make no such argument.

As an independent basis for summary adjudication of this cause of action, Defendants argue that Plaintiff cannot establish recoverable damages. This argument appears to be premised on the idea that the only act of breach at issue for purposes of this claim is Defendants' refusal to permit Plaintiff to be a month-to-month tenant indefinitely. The Court expresses no view on whether Plaintiff can establish that he suffered damages as a result of Defendants' alleged failure to comply with the California Tenant Protection Act of 2019. It is sufficient to note that the facts proffered in connection with this issue do not establish that Plaintiff did not suffer damages as a result of Defendants' alleged failure to comply with the California Tenant Protection Act of 2019, nor do they permit the Court to infer that Plaintiff does not have, and cannot reasonably obtain, evidence that he suffered such damages.

Summary adjudication is DENIED as to this cause of action.

Issue No. 3: Third Cause of Action – Wrongful Eviction

This cause of action alleges that Defendants wrongfully evicted Plaintiff and his wife by "attempting to terminate Plaintiff's tenancy and evict Plaintiff without a valid 'just cause' as required by [the California Tenant Protection Act of 2019], and in violation of the converted month-to-month terms of the lease agreement[.]" (TAC, ¶ 62.)

Defendants argue that "[t]he fundamental premise of a wrongful eviction claim is that the landlord unlawfully deprived the tenant of possession" (Memorandum, p. 7 [citing Civ. Code, § 1942.5]), which they claim did not occur in this case. The thrust of their argument is that as a matter of law, a landlord does not deprive a tenant of possession unless he or she commences a judicial action to expel the tenant or physically interferes with the tenancy (e.g., by locking the

tenant out or shutting off the unit's utilities).¹ (*Id.* at p. 7.) Defendants offer no authority to support their claim that the manner of Plaintiff's departure from the property cannot support a wrongful eviction claim as a matter of law. (See *Jones v. Superior Court* (1994) 26 Cal.App.4th 92, 99 ["Issues do not have a life of their own: if they are not raised or supported by argument or citation to authority, [the court] consider[s] the issues waived."].) The sole authority they cite in connection with this argument, Civil Code, section 1942.5, does not address what manner of tenant loss of possession is sufficient. Moreover, Civil Code, section 1942.5 pertains to retaliatory evictions. This is not a retaliatory eviction claim.

Defendants additionally argue that Plaintiff cannot establish that he suffered any damages causally connected to the conduct alleged to amount to wrongful eviction. They do not cite to any of their proffered undisputed material facts in connection with this argument, but clearly rely on evidence offered to prove that Plaintiff's departure from the property was voluntary and was not a result of Defendants' forcing him out. (See, e.g., UMF No. 31.) The Court has sustained Plaintiff's objections to this evidence. (See UMF No. 31 [evidence cited]; Pltf.'s Objection Nos. 1, 6-8.)

Finally, Defendants argue that "the undisputed evidence establishes good faith conduct" on their part. (Memorandum, p. 8.) Defendants do not articulate why good faith conduct would absolve them of liability for wrongful eviction as a matter of law. They cite no law in connection with this point. (See *Jones, supra*, 26 Cal.App.4th 92, 99.)

Where a party does not provide any legal authority to support its arguments, the Court will not take it upon itself to marshal such authority. If the Court did that, it would be permitting itself to be enlisted as counsel for Defendants, which would obviously be unfair to Plaintiff.

Defendants have not carried their burden as to this cause of action and summary adjudication is DENIED as to this issue.

Issue No. 4: Fourth Cause of Action – Unjust Enrichment

Plaintiff pleads this cause of action as an alternative to the breach of contract claim in the event that the Court determines that the June 2022 lease is invalid or unenforceable. (TAC, ¶ 64.1.) This claim is based on Plaintiff's performing certain home improvement tasks at the property at his own expense with Defendants' knowledge and appreciation. (*Id.* at ¶¶ 68-72.) Plaintiff alleges that he is entitled to reasonable compensation for these services. (*Id.* at ¶¶ 76-78.)

¹ In their reply, Defendants dispute that this is their contention. (Reply, p. 10.) If that is so, the Court cannot tell what Defendants *do* contend when they say that "[t]he fundamental premise of a wrongful eviction claim is that the landlord unlawfully deprived the tenant of possession" and then suggest that that did not happen in this case because "no unlawful detainer action was filed, no writ of possession was issued, no lockout of Plaintiff occurred, no utility shutoff occurred, and no 'self-help' eviction occurred." (Memorandum, p. 7.) Whatever manner of tenant departure Defendants argue is required to support a wrongful eviction claim, they have not offered any legal authority to support their contention of law.

“A plaintiff may not . . . pursue or recover on a quasi-contract claim if the parties have an enforceable agreement regarding a particular subject matter.” (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389; accord *Lance Camper Manufacturing Corp. v. Republic Indemnity Corp.* (1996) 44 Cal.App.4th 194, 203.) The June 2022 lease provided that “[w]ithout [Defendants’] prior written consent, . . . [Defendants] shall not be responsible for the costs of alterations or repairs made by TENANT; [and] TENANT shall not deduce from Rent the costs of any repairs, alterations, or improvements[.]” (Def.’s Ex. 3, ¶ 13; see also UMF 34.) The parties’ June 2022 lease thus covers the subject of their respective responsibility for the cost of tenant-made improvements.

However, a claim for unjust enrichment may lie where the parties had an express contract that is unenforceable because it was procured by fraud. (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 388.) As discussed above, Defendants have not carried their burden as to Plaintiff’s fraud claim, which alleges that Defendants procured his assent to the June 2022 lease through fraud. (TAC, ¶ 34.) At this stage, the Court cannot hold that Plaintiff’s unjust enrichment claim fails as a matter of law due to the existence of an enforceable contract between the parties governing their respective responsibility for the cost of tenant improvements.

“The elements of a cause of action for unjust enrichment are simply stated as ‘receipt of a benefit and unjust retention of the benefit at the expense of another.’ ” (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238 [quoting *Lectrodryer v. Seoulbank* (2000) 77 Cal.App.4th 723, 726].) Defendants argue that Plaintiff cannot establish that it would be unjust for them to retain the benefits of the work Plaintiff performed at their property at his own expense without compensating him. They explain that Plaintiff made these improvements voluntarily and for his own enjoyment and convenience. The Court has sustained Plaintiff’s objections to the evidence offered to support this. (See UMF No. 38 [evidence cited]; Pltf.’s Objection No. 2.) Defendants further emphasize that they neither promised to compensate him nor agreed that they would. (UMF Nos. 39-40.) They cite no authority suggesting that either of these facts mean it is, as a matter of law, just for Defendants to retain the benefits of these improvements without compensating Plaintiff. (See UMF No. 37.)

Summary adjudication is DENIED as to this issue.

Issue No. 5: Fifth Cause of Action – Intentional Infliction of Emotional Distress

To prove IIED, a plaintiff must establish (1) extreme and outrageous conduct by the defendant, (2) intent to cause emotional distress or reckless disregard of the risk of causing the same, (3) severe emotional distress, and (4) causation. (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494.) To qualify as “extreme and outrageous,” the conduct must be “‘so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.’ ” (*Id.* at p. 496 [quoting Rest.2d Torts, § 46, com. d, p. 73].) A court may deem the conduct at issue insufficiently extreme and outrageous to support IIED liability as a matter of law if no reasonable person could find the standard satisfied. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 534.)

Defendants argue that “[t]he conduct alleged by Plaintiff” does not amount to extreme and outrageous conduct as a matter of law. (Memorandum, p. 10.) The Court reads this as a request that it treat the motion for summary adjudication as to this issue as a referendum on the sufficiency of the pleadings. “[A] defendant’s motion for summary judgment ‘necessarily includes a test of the sufficiency of the complaint Motions for summary judgment in such situations have otherwise been allowed as being in legal effect motions for judgment on the pleadings.’ ” (*Larosa v. Superior Court* (1981) 122 Cal.App.3d 741, 744 [quoting *C.L. Smith Co. v. Roger Ducharme, Inc.* (1977) 65 Cal.App.3d 735, 745]; see also *Hansra v. Superior Court* (1992) 7 Cal.App.4th 630, 638-639 [there is no need for a court to assess whether a moving defendant has established facts sufficient to justify a judgment in its favor where the complaint does not state a cognizable claim; “a defendant has no obligation to present evidence to negate a legally inadequate claim”].) “ ‘ “[I]f the reviewing court finds the complaint fails to state facts sufficient to constitute a cause of action as a matter of law, it need not reach the question whether plaintiff’s opposition to the summary judgment motion raises a triable issue of fact.” ’ ” (*Hansra, supra*, 7 Cal.App.4th 630, 639 [quoting *Robinson v. Hewlett-Packard Corp.* (1986) 183 Cal.App.3d 1108, 1131].) When a motion for summary judgment is transmuted into a test of the pleadings, the court applies the standard applicable to a demurrer or a motion for judgment on the pleadings, accepting the allegations of the complaint as true. (*American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1118.)

The Court has already ruled that the TAC contains allegations sufficient to state a claim for IIED. (See Sep. 4, 2025 Order, p. 6.) Defendants therefore must carry the initial burden associated with any motion for summary adjudication if the Court is to summarily adjudicate the IIED claim.

The purportedly undisputed facts Defendants offer in connection with this issue all relate to events surrounding the parties’ 2023 attempts to negotiate a new lease. (See UMF Nos. 41-47.) The IIED cause of action, as pleaded, rests on conduct both during this period *and* during the parties’ original negotiation of the June 2022 lease. (See TAC, ¶¶ 81(a)-(b), 82.) A party cannot carry the initial burden associated with a motion to summarily adjudicate a cause of action if its moving papers fail to account for a portion of the claim. (See Code Civ. Proc., § 437c, subd. (c).) Similarly, a court cannot summarily adjudicate a portion of a cause of action. (See Code Civ. Proc., § 437c, subd. (f)(1) [“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.”].)

Even if it were not for this issue, the Court would conclude that Defendants had not met their burden here. Even if the Court were to accept all of the facts they offer as true, those facts merely indicate that Defendants were accommodating in certain ways in the course of the 2023 attempted lease renegotiation. (See UMF Nos. 41-47.) Defendants’ argument as to this issue does not engage with the allegations actually pleaded in connection with this cause of action (see TAC, ¶ 81(a)-(h)), nor do Defendants offer any facts tending to show that Plaintiff does not have, and cannot reasonably obtain, evidence necessary to prove his claims.

The motion is DENIED as to this Issue.

Issue No. 6: Claim for Punitive Damages

Defendants argue that Plaintiff cannot prove that he is entitled to punitive damages under Civil Code, section 3294, which requires a showing by clear and convincing evidence that “defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a).) Plaintiff does not seek punitive damages solely pursuant to Civil Code, section 3294. He also pleads entitlement to punitive damages under Civil Code, section 1946.2, subdivision (h)(1)(C) in connection with his wrongful eviction claim. (TAC, Prayer, ¶ b(2).) Oppressive, fraudulent, or malicious behavior is not strictly required for an award of punitive damages under that provision. “[A] showing that the owner has acted willfully” is sufficient. (Civ. Code, § 1946.2, subd. (h)(1)(C).) Defendants do not offer any argument as to this independent basis for punitive damages. The Court also notes that “fraud” may serve as a sufficient basis for punitive damages under either statute (see Civ. Code, §§ 3294, subd. (a); 1946.2, subd. (h)(1)(C)), and Plaintiff’s fraud claim survives this motion.

Also, Defendants’ argument is directed at their conduct during the period, commencing in approximately June 2023, when the parties were attempting to negotiate a mutually agreeable renewed lease. Plaintiff has also asserted a claim based on Defendants’ conduct in procuring the original lease in June 2022. To meet their initial burden, Defendants must foreclose *all* legal avenues through which Plaintiff might obtain punitive damages. (See *Hawkins*, *supra*, 144 Cal.App.4th 936, 945.) The Court cannot grant summary adjudication as to punitive damages where doing so would not dispose of the issue of Plaintiff’s entitlement to punitive damages in its entirety. (See Code Civ. Proc., § 437c, subd. (f)(1).)

Summary adjudication is DENIED as to this issue.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

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PLAINTIFF: JESSICA JOHL

vs.

DEFENDANT: LUHRS PROPERTY
MANAGEMENT, INC., A CALIFORNIA
CORPORATION ET AL.

NATURE OF PROCEEDINGS: MOTION – CONTINUE TRIAL

RULING

Plaintiff's motion to continue trial and for an extension of discovery to correspond with the new trial date is GRANTED, but the parties shall appear to confirm the new trial date. The Court declines to extend any date for expert designation.

Plaintiff brings this motion to continue the trial which currently set for November 2, 2026, for approximately seven weeks to January 19, 2027, and to also continue discovery to correspond with the new trial date. Separately, Plaintiff has filed a motion to compel discovery which is currently set for December 9, 2026. Defendant opposes the motion to continue.

Motions to continue trial are governed by California Rule of Court 3.1332. Rule 3.1332(a) provides that, "[t]o ensure the prompt disposition of civil cases, the dates assigned for a trial are firm." However, subdivision (c) allows a court to grant a continuance upon an affirmative showing of circumstances which may constitute good cause. These factors include but are not limited to the proximity of the trial date, whether there was a previous continuance, the length of the continuance, the availability of alternative means to resolve the problem causing the continuance, the prejudice to the parties, whether the parties have stipulated to the continuance, and whether the interests of justice will be served by a continuance. (Cal. Rule Ct. Rule 3.1332(c).)

Plaintiff's stated basis for seeking a continuance and corresponding extension of discovery are based on her claim that while she diligently sought the depositions of Defendants and principal witnesses after completion of her deposition on April 24, 2026, those depositions were delayed. The depositions which were completed in August, revealed new discovery concerning communications, documents, witnesses and questions regarding photographs and videos. Plaintiff seeks a seven week continuance to allow her to complete follow up discovery.

Defendant opposes the motion arguing that there has been ample time to conduct discovery and that in any event, the expert disclosure date should not be extended as the parties have been very clear as to the issues requiring experts.

The Court agrees in part with Plaintiff and finds good cause for a brief continuance of the trial date and the extension of discovery. The Court docket reflects that an ex parte application was filed to compel the depositions of Defendants back in June. This demonstrates that Plaintiff was in fact, diligently pursuing discovery and that such depositions were delayed. Additional factors weighing in favor of Plaintiff include that the trial date extension and discovery continuance are brief, that there have been no prior continuances, and that Defendants have not demonstrated prejudice with a brief continuance.

As to the expert disclosure date, the Court sees no reason why this date should be extended.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006429

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: CONSUELO BUSTINZA

vs.

DEFENDANT: U.S..BANK NATIONAL
ASSOCIATION ET AL.

NATURE OF PROCEEDINGS: MOTION – DISCOVERY – DISCOVERY FACILITATOR
PROGRAM

RULING

On June 29, 2026, Plaintiff filed a motion to compel Defendant to provide further responses to interrogatories. Defendant argues that Plaintiff's motion is untimely as the parties did not agree to extend the time to move to compel indefinitely as Plaintiff asserts. Defendant also asserts that supplemental responses have been served.

Unless a party moves to compel within 45 days of service of a verified response, the propounding party waives any right to compel further responses unless the parties agree in writing to a further extension. (Code of Civ. Proc. §2030.300). Plaintiff did not produce any written agreement extending the time to move to compel beyond March 2026. Nonetheless, Defendant waived its claim of untimeliness when it served further responses to interrogatories in August and September.

Plaintiff did not file a Declaration of Non-Resolution identifying what responses, if any remain outstanding. Given Defendant's willingness to provide further responses notwithstanding the untimely filing of the motion, the Court finds that the imposition of sanctions would be unjust.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNeEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DIRK AGUILAR

vs.

DEFENDANT: JUAN ANON ET AL.

NATURE OF PROCEEDINGS: MOTION – DISCOVERY – DISCOVERY FACILITATOR PROGRAM

RULING

On July 1, 2026, Plaintiff Dirk Aguilar (“Plaintiff”) filed a notice of motion and motion to deem requests for admission admitted against Defendant Benjamin Faber and for monetary sanctions. Plaintiff’s motion argued that Defendant Faber (“Defendant”) was served with the Requests for Admission on December 17, 2025 but failed to serve any response. However, on the same day in which the motion was filed, Defendant filed what appear to be unverified responses to the Request for Admission. Plaintiff however, argues that the motion was served six days before it was actually filed, and only then did Defendant file responses. Thereafter, and in response to meet and confer efforts, Defendant filed a Supplemental Response to Request for Admission which was verified.

Plaintiff now acknowledges that his motion to deem requests admitted should be denied pursuant to Code of Civil Procedure section 2033.220. However, Plaintiff requests monetary sanctions on the basis that it was his service of the motion on Defendant on June 26, 2026 which prompted Defense counsel to send an email averring that responses would be filed on or before July 1, 2026.

A party who must file a motion to obtain responses to requests for admission is entitled to monetary sanctions pursuant to Code of Civil Procedure section 2023.010. In this case, Plaintiff did not receive responses until after the motion was filed. Accordingly, sanctions are appropriate. The amount of sanctions requested is excessive for a simple motion in which there were no responses. The Court shall order \$1,660 in monetary sanctions and costs to be paid within thirty days of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008332

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DILWORTH CANNON ET AL.	
vs.	
DEFENDANT: DAVID MUNSON ET AL.	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER: PREFERENCE
2) ORDER – SHOW CAUSE – FAILURE TO APPEAR

RULING

In this consolidated action, Plaintiffs Dilworth and Helga Cannon (“Cannons”) filed a motion for trial preference pursuant to Code of Civil Procedure section 36(a). The motion was served on all parties on August 6, 2026. The motion appears to have been calendared on August 24, 2026. However, no proof of service was filed of the calendared motion. No opposition was filed.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKc6nkxzJjiEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009809

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: KORY JACK KINDT vs. DEFENDANT: CITY OF NOVATO, A PUBLIC ENTITY	
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NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant City of Novato’s demurrer to Plaintiff’s negligence and false arrest causes of action are sustained with leave to amend.

Allegations in the First Amended Complaint

Plaintiff Kory Jack Kindt alleges that beginning in 2025, he repeatedly contacted emergency personnel at Defendant City of Novato (the “City”) seeking assistance regarding thefts, break-ins, trespassing, and safety concerns. The City warned Plaintiff not to repeatedly contact emergency services. On March 5, 2025, portions of Plaintiff’s residence were “breached” and there was fiberglass debris, insulation materials and dust contamination in the residence, causing him emotional distress and physical harm. His repeated requests for assistance were inadequately addressed or ignored. Plaintiff experienced involuntary detentions and psychiatric evaluations and was arrested in August 2025. Plaintiff asserts causes of action that are labelled negligence, property damage, and personal injury/emotional distress.

Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th

1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Request for Judicial Notice

The City’s request for judicial notice of Plaintiff’s first Government Tort Claim marked as received July 23, 2025 (Exhibit A), the City’s written Notice of Rejection of Claim dated August 19, 2025 (Exhibit B), Plaintiff’s second Government Tort Claim marked as received on September 23, 2025 (Exhibit C), the City’s Notice of Rejection of Claim dated October 21, 2025 (Exhibit D), Plaintiff’s third Government Tort Claim marked as received on October 21, 2025 (Exhibit E), the City’s Notice of Rejection of Claim dated November 25, 2025 (Exhibit F), Plaintiff’s initial Complaint filed on April 17, 2026 (Exhibit G), and Plaintiff’s First Amended Complaint filed on May 19, 2026 (Exhibit H), is granted. (Evid. Code §§ 452, 453.)

Whether Plaintiff’s Negligence and False Arrest Causes of Action are Adequately Supported by Timely Government Claims

The City notes that despite the labels used, Plaintiff’s First Amended Complaint only alleges two possible causes of action: negligence and false arrest. Plaintiff does not dispute this characterization. (See Opp., p. 2 [“the FAC pleads two independent causes of action – negligence and false arrest”].)

Plaintiff’s First Claim: Timeliness

The City argues that to the extent Plaintiff’s claims are based on the March 5, 2025 incident, they are time-barred. An action for which a claim is required to be presented must be commenced no later than six months after the date a written notice of rejection is deposited in the mail. (Govt. Code § 945.6(a)(1); see *County of Los Angeles v. Superior Court* (2005) 127 Cal.App.4th 1263, 1270-71.) The City contends that it deposited the first Notice of Rejection of Claim in the mail on August 19, 2025, and Plaintiff did not file his original Complaint until over six months later on April 17, 2026.

While a court can take a judicial notice of a city’s notice of rejection of claim as an official act of a government entity, it cannot take judicial notice of the date it was deposited in the mail if there is a factual dispute over that date. (See *Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134-1135.) Here, Plaintiff does not dispute that the notice was deposited in the mail on August 19, 2025 and, in fact, does not dispute that “any claim arising solely from the March 5, 2025 property-damage incident, to the extent it is not also encompassed within [his two subsequent claims] is time-barred under this calculation.” (Opp., p. 4.) The Court will

therefore take judicial notice of the date of mailing under Evidence Code Section 452(h) because Plaintiff has indicated the date is not reasonably subject to dispute.

The Court agrees that to the extent Plaintiff's claims are based on the March 5, 2025 date, they are time-barred. However, because Plaintiff's claims are based on additional allegations and events that may support a cause of action, and because Plaintiff submitted two additional notices of claim, the Court does not sustain the demurrer based solely on the City's argument regarding timeliness and the March 5th event. (See *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 ["A demurrer must dispose of an entire cause of action to be sustained"].)

Plaintiff's Second and Third Claims: Whether Claims Fairly Describe the Factual Basis

The City argues that Plaintiff's causes of action fail due to a fatal variance from Plaintiff's Second (September 2025) and Third (October 2025) Claims.

"[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with . . . Section 910 . . . until a written claim therefore has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board" (Govt. Code § 945.4.) This claim must include "[a] general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim." (Gov. Code § 910(d).) "A claim served on a governmental entity must fairly describe what that entity is alleged to have done. A theory of recovery not included in the claim may not thereafter be maintained. However, while the circumstances described in a claim must substantially correspond with the causes of action pled, the claim need not conform to pleading standards. The primary function of the [Government Tort Claims Act] is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate, avoid litigation by settling meritorious claims. [Citations.]" (*Shoemaker v. Myers* (1992) 2 Cal.App.4th 1407, 1426 [citations and internal quotations omitted].)

"[E]ven if the claim were timely, the complaint is vulnerable to a demurrer if it alleges a factual basis for recovery which is not fairly reflected in the written claim. The claim, however, need not specify each particular act or omission later proven to have caused the injury. A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an entirely different set of facts. Only where there has been a complete shift in allegations, usually involving an effort to premise civil liability on acts or omissions committed at different times or by different persons than those described in the claim, have courts generally found the complaint barred. Where the complaint merely elaborates or adds further detail to a claim, but is predicated on the same fundamental actions or failures to act by the defendants, courts have generally found the claim fairly reflects the facts pled in the

complaint.” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 447 [citations and internal quotations omitted].)

Plaintiff’s Second Claim focused on an incident on April 8, 2025 involving a complaint by Plaintiff’s neighbor that he had threatened her with a firearm and the City’s detention of Plaintiff following that incident. (RJN Exh. C.) The Second Claim included a “Supplemental Information Sheet” that stated that “[t]he claim arises from a false arrest and unlawful detention that occurred on April 8, 2025, and was formally recorded on July 7, 2025.” Plaintiff further stated: “On April 8, 2025, a neighbor of Mr. Kindt contacted the Novato Police Department alleging that Mr. Kindt had threatened her with a firearm. She presented Ring camera footage from her front door. Officers arrived promptly and, after viewing the video for only a few minutes, made the decision to detain Mr. Kindt. No thorough investigation was conducted. Officers did not interview Mr. Kindt, verify the nature of the object allegedly involved, or seek corroborating evidence. Mr. Kindt was accused of ‘Drawing/Exhibiting an Imitation Firearm in a Threatening Manner’ and ‘Threats of Violence.’ He was processed as if formally arrested, resulting in a \$50,000 bail. Mr. Kindt paid \$5,000 to secure release. The District Attorney later dropped all charges, confirming the absence of probable cause. On July 7, 2025, Mr. Kindt’s arrest record reflected duplicate entries for the same charges, attributed to both the Novato Police Department and the Mann County Sheriff’s Department. This duplication indicates procedural confusion and lack of coordination between agencies, further supporting the claim of false arrest and negligent investigation.”

Plaintiff’s Third Claim described Plaintiff’s claim as “fail to act, negligence” and identified the date as July 5, 2025 with related events beginning April 8, 2025. The location was identified as outside Plaintiff’s residence and surrounding area. Plaintiff discussed the March 5, 2025 and April 8/July 7, 2025 incidents and also included a cover letter in which Plaintiff stated that “the negligent handling of certain critical incidents — culminating in the events March 5, 2025 and July 07, 2025 has resulted in trauma, property loss, and ongoing emotional distress. Over the course of these events, I have endured: • Repeated invasions of my home by a dangerous individual, Mathew Abraha, over several months, including theft of personal identification, debit cards, valuables, and irreplaceable personal effects. • Structural and property damage during the police response necessary to extract the suspect safely. • Profound emotional trauma, compounded by my ongoing efforts to recover from alcohol dependence and maintain personal stability.” Plaintiff also submitted a “timeline of incidents & failures to act” which included allegations that there was minimal response and follow up after Plaintiff requested assistance for events that occurred on April 16, 2013, June 26, 2021, September 4, 2022, January 21, 2023, January 25, 2023 and March 27, 2023.

Discussion

The Court focuses on Plaintiff's Second and Third Claims, as Plaintiff's initial Complaint was untimely as to the First Claim.

False Arrest Cause of Action

The Second Claim presents sufficient information to support Plaintiff's false arrest cause of action as to the arrest that occurred after the neighbor's complaint of being threatened with a firearm.¹ Plaintiff alleges in his First Amended Complaint that he was arrested and detained in August 2025, that he denies unlawfully threatening or assaulting any person with a firearm, and that the arrest and detention lacked proper factual basis. (First Amended Complaint ("FAC"), ¶¶21, 22.) Plaintiff explains in his Opposition that the August 2025 arrest date alleged in his First Amended Complaint was erroneously included and that the arrest actually occurred at the time of the incident on April 8, 2025, as stated in his Second Claim. (Opp. p. 11.) The Court will allow Plaintiff to amend his Complaint to reflect the correct date of the arrest. The Second Claim provided sufficient detail of the April 8th arrest to put the City on notice of Plaintiff's claim. The demurrer is therefore not sustained on this basis.

Negligence

In his Opposition, Plaintiff concedes that the Second Claim is insufficient to support his negligence cause of action. Specifically, Plaintiff states: "The City's variance argument has more force as to Claim 2, which described an April 8, 2025 incident in which officers responded to a neighbor's report and arrested Plaintiff, rather than an incident in which officers failed to respond to Plaintiff's own call. Plaintiff does not ask the Court to stretch Claim 2 to cover a negligence theory it does not support. But Claim 2 independently and adequately presents the false-arrest and inadequate investigation theory" (Opp. at p. 7.)

The City argues that the Third Claim is also insufficient to support Plaintiff's negligence cause of action because the Third Claim's alleged incidents from April 16, 2013 to March 27,

¹ The Third Claim is untimely as to the April 8, 2025 arrest. Plaintiff was required to file a government claim within six months after the accrual of the cause of action. (Gov. Code § 911.2(a); *Ridley v. City and County of San Francisco* (1969) 272 Cal.App.2d 290, 292-293.) A false arrest cause of action accrues upon the date of the arrest. (See *Mohlmann v. City of Burbank* (1986) 179 Cal.App.3d 1037 n. 1; *McMahon v. Albany Unified School Dist.* (2002) 104 Cal.App.4th 1275, 1292.) Therefore, to be timely, Plaintiff's claim would have to be filed no later than October 8, 2025. Exhibit E to the City's request for judicial notice reflects that Plaintiff submitted his claim on October 21, 2025 – something that Plaintiff does not dispute. Indeed, with respect to the false arrest cause of action, Plaintiff argues only that it is supported by the Second Claim. (See Opp. at pp. 9-10.)

2023 are factually and temporally distinct from the First Amended Complaint's allegations regarding 2025 or later incidents. The City is correct on this point, as Plaintiff alleges in the First Amended Complaint that "Beginning in or around 2025 and continuing thereafter, Plaintiff repeatedly contacted law enforcement, emergency personnel, housing representatives, and related agencies seeking assistance, protection, intervention, and investigation relating to dangerous conditions, break-ins, thefts, trespassing incidents, property damage, safety concerns, and ongoing disturbances occurring at or near Plaintiff's residence." (FAC, ¶8.) The City is also correct that any claim filed in 2025 would be untimely as to those earlier events under Section 911.2.

The demurrer to this cause of action is sustained, as Plaintiff does not identify any incidents that were alleged in the Third Claim that occurred in 2025 other than the March 5th incident and the April 8th arrest/July 7th discovery. Plaintiff includes broad language in the Third Claim that could potentially include additional 2025 events; he is granted leave to include those events in his Complaint to the extent those underlying events would not make the Third Claim untimely. (See note 1.)

Duty of Care (Negligence Cause of Action)

The demurrer to the negligence cause of action is sustained on the additional ground that Plaintiff fails to allege a duty of care for the alleged failure to respond. "Neither a public entity nor a public employee is liable for failure to establish a police department or otherwise to provide police protection service or, if police protection service is provided, for failure to provide sufficient police protection service" (Gov. Code § 845.) "Police routinely respond to emergencies, but they do not have a 'legal duty' to do so . . . an officer's failure to respond to a request for assistance will not result in tort liability for the officer even if a member of the public is injured by the officer's failure to act, i.e., his or her nonfeasance." (*Camp v. State of California* (2010) 184 Cal.App.4th 967, 970.) "The general rule is that, 'one has no duty to come to the aid of another. A person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.' A police officer, paramedic or other public safety worker is as much entitled to the benefit of this general rule as anyone else." (*Id.* at p. 975 [citation omitted].) "California courts have found no duty of care and have denied recovery 'for injuries caused by the failure of police personnel to respond to requests for assistance, the failure to investigate properly, or the failure to investigate at all, where the police had not induced reliance on a promise, express or implied, that they would provide protection.'" (*Ibid.* [citations omitted].)

"A duty of care may arise where the evidence demonstrates the requisite factors to a finding of a special relationship, namely detrimental reliance by the plaintiff on the officers' conduct, [or on] statements made by them which induced a false sense of security and thereby

Page 6 of 8

worsened [the plaintiff's] position. A special relationship is not established simply because police responded to a call for assistance and took some action at the scene. Nor is it enough to assert that the law enforcements took control of the situation. Instead, special relationships have been found only in a limited class of unique cases involving police officers who made misrepresentations that induced a citizen's detrimental reliance [citations], placed a citizen in harm's way [citations], or lulled a citizen into a false sense of security and then withdrew essential safety precautions [citation]." (*Id.* at pp. 976-977 [citations and internal quotations omitted].)

Plaintiff fails to allege a duty of care owed to him by the City. He alleges that the City owed him a duty to reasonably and timely respond to his complaints and that the City breached that duty. There is no special relationship alleged that would take Plaintiff's allegations out of the general rule. For example, Plaintiff does not allege that police officers made misrepresentations that induced Plaintiff's detrimental reliance, put Plaintiff in harm's way, or lulled Plaintiff into a false sense of security and then withdrew essential safety precautions.

Statutory Basis for Liability (Negligence and False Arrest Causes of Action)

The City demurs to both causes of action on the ground that Plaintiff fails to allege a statutory basis for liability. "Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person." (Gov. Code § 815.)

The demurrer to the negligence cause of action is sustained on this basis because a public employee cannot be liable for the negligence alleged by Plaintiff. (See (Gov. Code § 845; *Camp*, 184 Cal.App.4th at p. 970.) The demurrer to the false arrest cause of action is also sustained but for a different reason. "Under the doctrine of respondeat superior and Government Code section 815.2, a public entity employer may be held vicariously liable for torts committed by an employee within the scope of employment." (*Juarez v. San Bernardino City Unified School Dist.* (2024) 106 Cal.App.5th 1213, 1220.) This includes claims for false arrest. (*Id.*; *Collins v. City and County of San Francisco* (1975) 50 Cal.App.3d 671, 673-674; Gov. Gov. Code § 820.4 ["A public employee is not liable for his act or omission, exercising due care, in the execution or enforcement of any law. Nothing in this section exonerates a public employee from liability for false arrest or false imprisonment"].) However, Plaintiff does not allege sufficient facts regarding the arrest to survive a demurrer. As noted above, Plaintiff alleges the incorrect date of arrest, and also does not identify the identity of any particular public employee involved or why the arrest was wrongful. Plaintiff is granted leave to amend to include this information.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0010277

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: A. NGUYEN

vs.

DEFENDANT: MARIN GENERAL
HOSPITAL DBA MARINHEALTH
MEDICAL CENTER ET AL.

NATURE OF PROCEEDINGS: DEMURRER

RULING

The Demurrer of defendant David Lincoln Nelson, M.D. (“Dr. Nelson” or “Defendant”) is SUSTAINED, in part, with leave to amend, and in part, without leave to amend.

LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Childs v. State of California* (1983) 144 Cal.App.3d 155, 159.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Plaintiff A. Nguyen (“Plaintiff”) filed a Complaint alleging eighteen causes of action against multiple defendants, including Marin General Hospital dba MarinHealth Medical Center (“MarinHealth”) and Dr. Nelson.

The Complaint states causes of action for:

1. Sexual Harassment/Hostile Work Environment in Violation of FEHA (Gov. Code § 12940(j));
2. Sex Discrimination in Violation of FEHA;
3. Retaliation in Violation of FEHA;
4. Failure to Prevent Harassment, Discrimination, and Retaliation in Violation of FEHA;
5. Disability Discrimination in Violation of FEHA;
6. Failure to Provide Reasonable Accommodation in Violation of FEHA;
7. Failure to Engage in the Interactive Process in Violation of FEHA;
8. Religious Discrimination in Violation of FEHA;
9. Failure to Accommodate Religious Practices in Violation of FEHA;
10. Retaliation for Requesting Religious Accommodation in Violation of FEHA;
11. CFRA Interference (Gov. Code § 12945.2);
12. CFRA Retaliation (Gov. Code § 12945.2);
13. Retaliation for Protected Sick Leave under the Healthy Workplaces Healthy Families Act;
14. Whistleblower Retaliation in Violation of Labor Code § 1102.5;
15. Wrongful Constructive Discharge in Violation of Public Policy;
16. Intentional Infliction of Emotional Distress;
17. Negligent Hiring, Retention, and Supervision; and
18. Assault and Battery.

Dr. Nelson demurs to fourteen of those causes of action – the Second through Fifteenth Causes of Action – on the grounds that each of these fourteen causes of action fails to state a claim against Dr. Nelson as a matter of law because he was not Plaintiff’s employer.

Allegations in the Complaint

The Complaint alleges that Plaintiff was employed “by MARIN GENERAL HOSPITAL, a California non-profit public benefit corporation, doing business as MARIN HEALTH MEDICAL CENTER.” (Compl., ¶¶ 1, 2, 7, 10.)

With respect to Dr. Nelson, the Complaint alleges he “is an individual who, at all times relevant herein, performed surgical procedures at MarinHealth Medical Center in Greenbrae, California. Defendant Nelson performed surgical cases in MarinHealth’s surgical suites, including in the Ambulatory Surgery Center, and had regular and continuing contact with MarinHealth’s nursing staff, including Plaintiff. MarinHealth’s own internal incident reporting system classified Defendant Nelson as a “Co-Worker” of Plaintiff at the time of the events alleged herein. MarinHealth assigned Plaintiff to work with Defendant Nelson and exercised control over Plaintiff’s working conditions during the surgical cases to which she was assigned with him, including control over room assignments, staffing, and scheduling.” (Compl., ¶ 3.)

“Plaintiff is informed and believes, and thereupon alleges, that Defendant Nelson performed surgical procedures at MarinHealth Medical Center pursuant to a relationship that gave rise to actual or ostensible agency liability on the part of MarinHealth, as the Hospital assigned Plaintiff to work alongside him, integrated him into MarinHealth’s surgical operations, and through such conduct created the appearance and reality of an employment or agency relationship for purposes of imposing liability for workplace harassment. To the extent Defendant Nelson is a physician with staff privileges rather than a direct employee of MarinHealth, such status does not relieve MarinHealth of liability for his harassing conduct, because MarinHealth knew of that conduct, substantiated the allegations, and failed to take adequate corrective action.” (Compl., ¶ 4.)

Paragraph 6 of the Complaint includes generalized agency allegations on information and belief.

Second Through Tenth Causes of Actions

Defendant argues that Plaintiff’s Second through Tenth Causes of Action allege violations of the California Fair Employment and Housing Act (“FEHA”). Defendant argues that each of these claims fails as a matter of law because FEHA does not permit individual liability against persons who are not employers for these causes of action.

For example, section 12940(a) declares it unlawful for “an employer” to discriminate because of sex. Section 12940(j)(4)(A) states” “For purposes of this subdivision only, ‘employer’ means any person regularly employing one or more persons or regularly receiving the services of one or more persons providing services pursuant to a contract, or any person acting as an agent of an employer, directly or indirectly, the state, or any political or civil subdivision of the state, and cities. The definition of ‘employer’ in subdivision (d) of Section 12926 applies to all provisions of this section other than this subdivision.” Section 12926(d) definition which provides: “ ‘Employer’ includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...”

The *Janken* court confronted the plaintiffs’ argument that an individual supervisor acts “as an agent of an employer” within the meaning of “employer” in section 12926, subdivision (d), and is therefore personally liable as an employer. (*Reno v. Baird* (1998) 18 Cal.4th 640, 647, citing *Janken v. GM Hughes Elecs.* (1996) 46 Cal.App.4th 55.) *Janken* found two possible constructions of the “agent” language. (*Ibid.*) “One construction is that argued for by plaintiffs here: that by this language the Legislature intended to define every supervisory employee in California as an ‘employer,’ and hence place each at risk of personal liability whenever he or she makes a personnel decision which could later be considered discriminatory. (*Ibid.*) The other construction is the one widely accepted around the country: that by the inclusion of the ‘agent’ language the Legislature intended only to ensure that *employers* will be held liable if their supervisory employees take actions later found discriminatory, and that *employers* cannot avoid liability by arguing that a supervisor failed to follow instructions or deviated from the employer’s policy.” (*Ibid.*) The *Janken* court adopted the latter construction for several reasons. (*Ibid.*)

The *Reno* court ultimately sided with *Janken*, holding “we conclude that individuals who do not themselves qualify as employers may not be sued under the FEHA for alleged discriminatory acts.” (*Id.*, at p. 663.)

In Opposition, Plaintiff counters that *Reno* was decided on summary judgment, after the facts had been established, and “Dr. Nelson is not alleged to be a supervisor who made personnel decisions about Plaintiff; he is alleged to have personally engaged in the underlying misconduct while integrated into MarinHealth’s operations.” (Oppo., p. 8:27-28; 9:1-3.) This argument appears to assert that the conduct giving rise to the Sexual Harassment Claim against Dr. Nelson (First Cause of Action) also supports all of the other FEHA claims against him. The Court notes that it is skeptical of this assertion. However, the Court will grant Plaintiff leave to amend in the hopes of clarifying the underlying misconduct Dr. Nelson is alleged to have personally engaged in.

With respect to the Second, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action, the Demurrer is SUSTAINED with leave to amend.

Plaintiff does not oppose Defendant’s Demurrer as to the Third and Tenth Causes of Action. (Oppo. p. 7:1-2.) The Demurrer is therefore SUSTAINED without leave to amend as to the Third and Tenth Causes of Action.

Eleventh, Twelfth, Thirteenth, and Fifteenth Causes of Action

With respect to these causes of action, the Opposition states “Even accepting that these provisions are directed principally at employers, the demurrer does not warrant dismissal of these claims against Dr. Nelson without leave to amend.” (Oppo. p. 8:18-19.) Because Plaintiff represents that these causes of action can be cured by amendment, and under the liberal policy of permitting amendment, the Court SUSTAINS the Demurrer to the Eleventh, Twelfth, Thirteenth, and Fifteenth Causes of Action with leave to amend.

Fourteenth Cause of Action

Dr. Nelson argues the Fourteenth Cause of Action fails because whistleblower retaliation under Labor Code section 1102.5 does not apply to non-employer individuals. California Labor Code section 1102.5(b) provides that an employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information the employee has reasonable cause to believe discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation. Plaintiff is correct that there is no explicit case law post amendment deciding whether or not individuals may be liable under this section. However, either way, the Complaint does not specify acts or conduct by Dr. Nelson. (See Compl., ¶ 128.) Accordingly, as to the Fourteenth Cause of Action, the Demurrer is SUSTAINED with leave to amend.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNeEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>